

SENATE No. 446

The Commonwealth of Massachusetts

PRESENTED BY:

Michael F. Rush

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to physical and social recess in schools.

PETITION OF:

NAME:

Michael F. Rush

DISTRICT/ADDRESS:

Norfolk and Suffolk

SENATE No. 446

By Mr. Rush, a petition (accompanied by bill, Senate, No. 446) of Michael F. Rush for legislation relative to physical and social recess in schools. Education.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 350 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to physical and social recess in schools.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1G of Chapter 69 of the General Laws is hereby amended by
2 inserting at the end thereof the following new paragraph:-

3 All children in grades kindergarten through five attending public schools shall receive
4 one hundred minutes of supervised, safe, and unstructured free-play recess each week so that
5 there are at least twenty consecutive minutes of free-play recess per day. As used herein, the term
6 "free play" means an unstructured environment, but which is supervised by appropriate school
7 personnel or staff. Regulations promulgated by the department may not exclude recess from
8 structured learning time requirements for elementary school children and may not increase the
9 total number of hours required in the school year to meet the provisions of this subsection.

SECTION 2. Chapter 71 of the General Laws is hereby amended by inserting after section 4A, as appearing in the 2016 Official Edition, the following section:-

Section 4B. Notwithstanding any general or special law to the contrary, no public elementary school shall decrease the amount of time it allots and provides to students as recess time designed to allow students to participate in physical and social activities as a result of any changes in standards or curriculum that the school is required to or chooses to adopt. For purposes of this section, “elementary school” shall mean a school providing instruction to grades K through 5, and, where so designated by a school committee prior to the commencement of a school year, may also include a middle school or other intermediate level school providing instruction to grades 5 through 6 or any combination thereof.